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Code of Civil Procedure — Unit I

Read it like a story. Remember it for life.

LL.B. (3 YDC) · Semester V · Civil Procedure Code & Limitation

1	**Codification, features and key definitions**	Why a procedure code · structure of the CPC · decree, judgment, order
2	**Suits — meaning, essentials and kinds**	What a suit is · four essentials · special kinds of suits
3	**Parties to a suit — joinder, misjoinder, non-joinder**	Order I · necessary and proper parties · representative suits
4	**Frame of suit and cause of action**	Order II · the whole claim rule · splitting of claims
5	**Institution of suits — plaint, return and rejection**	s.26 · Order IV · Order VII rr.10–11
6	**Bar of suits — jurisdiction of civil courts (s.9)**	Suits of a civil nature · express and implied bars
7	**Res sub judice — stay of suit (s.10)**	Two suits on the same matter · stay the later one
8	**Res judicata (s.11) and foreign judgments (ss.13–14)**	A matter once decided is decided forever

9 **Place of suing — territorial jurisdiction (ss.15–21)** — Which court? · property suits · wrongs · contract suits · objections

10 **Transfer of suits (ss.22–25)** — Moving a case to another court — who can, and why

11 **Summons and service — including foreign summons** — s.27–29 · Order V · from a bailiff's visit to e-mail and WhatsApp

How to read these notes

Each chapter opens with a **big idea**, then **the story of the topic** — read it like a novel, the highlighted words are the ones examiners look for. Then come the **definitions, rules and exceptions**, the **landmark cases as comic stories**, a ✍ **write-it-like-this** exam frame, a quick self-test and a ★ **memory hook**.

🙏 *Spoorthi Oum* 🙏

CHAPTER 1 · 9 PARTS

Codification, features and key definitions

Why a procedure code · structure of the CPC · decree, judgment, order

> **Big idea**
>
> Substantive law gives you a **right**; the Civil Procedure Code tells you **how to go to court and get it**. Procedure is the road; the right is the destination.

📖 The story of this topic

Ravi lends ₹5 lakh to his friend Suresh. The **Contract Act** gives Ravi a **right** to get the money back. But Suresh does not pay. A right sitting in a book does not put money in Ravi's pocket — he needs a **road** to reach it. That road is the **Code of Civil Procedure, 1908**. It tells Ravi which court to go to, how to write his case, how Suresh is called to court, how evidence is taken, how the judge decides, and how the decision is finally enforced.

Ravi's lawyer files a **plaint**. Over the next months the judge passes many small decisions — granting an adjournment, allowing a document to be filed, ordering Suresh not to sell his car till the case ends. Each of these is an order under **s.2(14)**: a formal decision of a civil court **that is not a decree**.

At the end, the judge writes twenty pages explaining why Ravi's evidence is believable. Those reasons are the judgment — **s.2(9)**, the statement of the **grounds** of the decision. Then one short document is drawn up: 'Suit decreed; defendant shall pay ₹5 lakh with interest and costs.' That is the decree — **s.2(2)**, the formal expression of an adjudication that **conclusively determines the rights** of the parties in the **suit**. Ravi is now the **decree-holder**; Suresh, the **judgment-debtor**.

Now a second story. Meena and her two brothers own a farm together. In her **partition suit**, the court first declares 'each gets one-third' — a **preliminary decree**, because work remains. Later a commissioner measures the land and the court allots the actual plots — the **final decree**. Meanwhile, a cousin who had wrongly occupied part of the farm collected the harvest for three years. He must pay **mesne profits** (**s.2(12)**) — what he actually got or could have got with ordinary care — **but not** for the borewell he dug himself, because profits due to **his own improvements** are excluded.

If Suresh had died during Ravi's case, his son who took over the shop and its debts would be brought in as his **legal representative** (**s.2(11)**) — even a person who simply **intermeddles** with the estate counts. Remember also the **two exclusions** from 'decree': an

appealable order, and a **dismissal for default**. A plaint thrown out under O.VII r.11 is, surprisingly, a decree.

Finally, the shape of the Code: **158 sections** hold the principles (jurisdiction, res judicata, appeals, execution) and the **First Schedule's 51 Orders** hold the practical rules. High Courts can amend the rules for their territory (**s.122**). And the spirit of the whole Code, as the Supreme Court said in *Sangram Singh*, is that procedure exists to help justice, not to trip people up.

How India got one civil procedure TIMELINE

Before 1859

Different Regulations for the Company's courts; the Supreme Courts in the Presidency towns followed their own Charters and English practice.

1859

First uniform **Code of Civil Procedure** (Act VIII of 1859) for the mofussil courts.

1877 · 1882

Revised Codes; the 1882 Code applied more widely.

1908

Present **Code of Civil Procedure, 1908** (Act V of 1908), in force **1 January 1909**.

1976

Major amendment — e.g. s.25 substituted (Supreme Court transfer), proviso to O.I r.9 (necessary party).

1999 / 2002

Amendments in force **1 July 2002** — s.89 ADR, time limits for written statement, affidavit with plaint (s.26(2)), new modes of service.

2015

Commercial Courts Act modifies the CPC for commercial suits.

Structure of the Code MAP

CPC, 1908

Body — 158 sections

- **substantive-procedural principles**: jurisdiction, res judicata, appeals, execution
- amended only by the **legislature** — Parliament, or a State Legislature for its State (Concurrent List, Entry 13)

First Schedule — 51 Orders

- the **rules** — the day-to-day 'how'
- Orders → rules; e.g. O.VII r.11
- High Courts may **amend/add** rules s.122

Appendices A–H

- **forms** — pleadings, process, decrees, execution, appeals

Principal features of the CPC

⚖️

Procedural, not penal

it facilitates justice; it does not create rights

🧭

Sections + rules

principles in sections, details in Orders

🪜

Whole journey of a suit

institution → pleadings → trial → decree → appeal → execution

🧩

Flexibility

inherent powers s.151; amendment of pleadings

🚫

Finality

res judicata s.11, O.II r.2 — no endless suits

🕊️

ADR built in

s.89 — settle outside court

Words to own DEFINITIONS

1 Decree s.2(2)

the **formal expression of an adjudication** which, so far as the court is concerned, **conclusively determines the rights** of the parties on all or any matters in controversy **in the suit**. May be **preliminary** (more proceedings needed), **final** (disposes of the suit) or partly both. **Includes** rejection of a plaint and s.144 restitution decisions; **excludes** appealable orders and **dismissal for default**.

e.g. A partition suit: the preliminary decree declares each sharer's share; the final decree divides the land by metes and bounds.

2 Judgment s.2(9)

the **statement given by the judge on the grounds** of a decree or order — the reasons.

e.g. The 20 pages of reasoning; the decree is the one-paragraph result drawn up after it.

3 Order s.2(14)

the **formal expression of any decision** of a civil court **which is not a decree**.

e.g. An order granting a temporary injunction or rejecting an adjournment.

4 Decree-holder / Judgment-debtor

s.2(3) · s.2(10)

the person **in whose favour** a decree or executable order is passed / the person **against whom** it is passed.

5 Legal representative s.2(11)

a person who **in law represents the estate of a deceased** person — includes one who **intermeddles** with the estate.

e.g. A son who takes over his late father's shop and its debts.

6 Mesne profits s.2(12)

profits a person in **wrongful possession actually received or might with ordinary diligence have received**, with interest — **but not** profits due to improvements made by that person.

e.g. Rent a trespasser collected from a house he had no right to occupy.

7 Foreign court / foreign judgment s.2(5) · s.2(6)

a court **outside India** not established or continued by the Central Government / the **judgment of a foreign court**.

e.g. A Missouri (USA) divorce decree.

Decree vs order — the most-asked pair

TABLE

Point	Decree	Order
Arises in	only a **suit** (plaint)	suit, application or petition
Decides	**rights** of parties conclusively	may be procedural or interim
Kinds	preliminary, final, partly both	appealable and non-appealable
Appeal	first appeal lies s.96; second appeal s.100	only listed orders s.104, O.XLIII
Number	usually one final decree in a suit	many orders in one suit

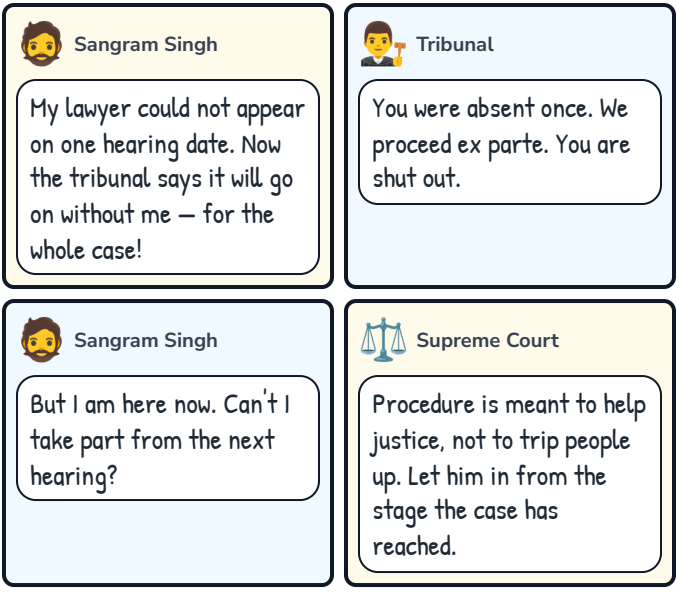
⚖️ *Case story*

Sangram Singh v. Election Tribunal, Kotah

1955 · Supreme Court of India

🧔 Sangram Singh (respondent in an election petition)

👨‍⚖️ Election Tribunal ⚖️ Supreme Court



An election petition was pending against Sangram Singh. On one date his side did not appear, and the Tribunal decided to hear the case **ex parte**. When he later asked to participate, the Tribunal took the view that once a case goes ex parte, the absent party is shut out for good.

Justice Vivian Bose wrote the famous lines: a code of procedure is designed to facilitate justice and further its ends: not a penal enactment for punishment and penalties; not a thing designed to trip people up. Proceeding ex parte on one date does not bar the defendant from appearing at a later hearing — he only cannot undo what was done in his absence unless he shows good cause.

Held → An ex parte order does not permanently exclude the defendant; he may join the proceedings at the stage they have reached. Procedural rules must be read to **advance justice**.

🔗 How it locks into the section

This is the **philosophy of the whole CPC**: read every section and rule — summons (O.V), ex parte (O.IX), amendment (O.VI r.17) — so that a party gets a fair hearing, not so that a technical slip ends the case.

✍️ Write it in the exam like this

Q. Define decree. Distinguish between decree, judgment and order.

1. Introduction — CPC is adjective law; decisions of a civil court take three forms.
2. Decree, s.2(2) — essentials: (i) adjudication, (ii) in a suit, (iii) rights of parties on matters in controversy, (iv) conclusive determination, (v) formal expression. Kinds: preliminary, final, partly both; deemed decrees (rejection of plaint, s.144). Exclusions: appealable orders, dismissal for default.
3. Judgment, s.2(9) — grounds of a decree or order; contents (O.XX r.4-5).
4. Order, s.2(14) — any formal decision not a decree; appealable orders s.104 and O.XLIII.
5. Comparison table — arises in, decides, kinds, appeal, number.
6. Case: Sangram Singh (1955) — procedure serves justice. Conclude.

Quick self-test ANSWERS BELOW EACH

Q1. Is dismissal of a suit for default a 'decree'?

No. s.2(2) expressly **excludes** any order of dismissal for default. The remedy is restoration under O.IX r.9.

Q2. Is rejection of a plaint under O.VII r.11 a decree?

Yes — s.2(2) says 'decree' **includes** rejection of a plaint. So a first appeal lies.

Q3. Who can amend the sections of the CPC, and who can amend the rules?

Sections — only the **legislature** (Parliament; a State Legislature for its own State). Rules in the First Schedule — Parliament, and **High Courts** under s.122 for their territory.

Q4. Why are improvements excluded from mesne profits?

Because the wrongful possessor should pay for what the property itself yielded, not for extra value created by his own investment — s.2(12).

Asked in past papers 2 QUESTIONS · 2013–2020

2016 · Part A Judgment and Decree

2018 · Part A Judgment and Decree.

★ *Memory hook*

Judgment = reasons · Decree = result in a suit · Order = every other decision. CPC = 158 sections (principles) + 51 Orders (practice).

CHAPTER 2 · 7 PARTS

Suits — meaning, essentials and kinds

What a suit is · four essentials · special kinds of suits

> **Big idea**
> A **suit** is the civil case itself — a proceeding that **starts with a plaint**. The CPC never defines it; courts do.

📖 The story of this topic

Lakshmi's neighbour builds a wall that eats two feet into her plot. She can complain to friends, write to the newspaper, or go to the panchayat — none of these is a **suit**. The moment her lawyer **presents a plaint** in the civil court, a suit is born. The CPC never defines 'suit'; the Privy Council in *Hansraj Gupta* described it as a civil proceeding **instituted by the presentation of a plaint**, and **s.26** says every suit is instituted that way.

Every suit, like Lakshmi's, has **four essentials** — think of them as the four legs of a table. Opposing parties (Lakshmi v. the neighbour), a cause of action (her ownership, the encroachment, his refusal to remove it), a subject-matter (the two-foot strip) and a relief (removal of the wall, an injunction, damages). Take away any one leg and the table falls.

Some suits are special because of **who** sues or **how many** sue. If a whole colony of fifty families is affected by a blocked road, three of them may sue **for all** with the court's permission — a **representative suit** under **O.I r.8**. If Lakshmi wants to sue the **Government** about the wall built by the PWD, she must first give **two months' notice** under **s.80** — so that the Government can settle without litigation.

If Lakshmi were too poor to pay the court fee, she could sue as an **indigent person** under **O.XXXIII**; even a company can do this (*Union Bank v. Khader International*). If she were a minor, she would sue through a **next friend** (O.XXXII). If a bank holds ₹10 lakh claimed by two rival heirs and itself claims nothing, it files an **interpleader suit** (s.88, O.XXXV) and lets the heirs fight it out. And a creditor holding a dishonoured cheque or written contract can choose a fast-track **summary suit** (O.XXXVII), where the defendant must first get **leave to defend**.

Words to own DEFINITIONS

1 Suit s.26

a **civil proceeding instituted by the presentation of a plaint** (Privy Council, *Hansraj Gupta v. Official Liquidators, Dehra Dun-Mussoorie Electric Tramway Co.*). Not defined in the Code.

e.g. A neighbour's case for removal of an encroaching wall.

2 Plaint O.VII

the written statement of the **plaintiff's claim** — the document that starts a suit.

3 Plaintiff / Defendant

the person who **sues** / the person **sued**.

4 Cause of action O.VII r.1(e)

the **bundle of facts** the plaintiff must prove to get a decree.

e.g. Ownership + encroachment + refusal to remove.

Four essentials of every suit

👥
Opposing parties
at least one plaintiff and one defendant

📌
Cause of action
facts giving the right to sue

🏠
Subject-matter
the property, money or right in dispute

🎯
Relief
what the plaintiff asks the court to grant

Special kinds of suits — where to find them

TABLE

Kind	What it is	Where
Representative suit	one or more persons sue/defend **for many** with the same interest, with court's permission and public notice	O.I r.8
By or against Government	two months' **notice** before suing the Government or a public officer	s.79 – s.82 · s.80
Indigent persons	a person **unable to pay court fee** may sue without paying it first	O.XXXIII
Minors & persons of unsound mind	sue through a **next friend**; defended by a **guardian ad litem**	O.XXXII
Interpleader suit	a stakeholder who claims nothing asks rival claimants to fight it out among themselves	s.88 · O.XXXV
Summary suit	quick trial for debts on negotiable instruments, written contracts; defendant needs **leave to defend**	O.XXXVII
Suits by aliens / against foreign States	aliens of friendly countries may sue; foreign State sued only with Central Government consent	s.83 – s.86

Kind	What it is	Where
Commercial suit	commercial disputes of specified value — stricter timelines	Commercial Courts Act 2015

Case story

Union Bank of India v. Khader International Construction

2001 · Supreme Court of India

Khader International (a company) · Union Bank of India · Supreme Court

Company

We have a big claim against the bank, but we cannot even pay the court fee.

Bank

O.XXXIII is for poor **persons**. A company is not a pauper!

Company

A company is a legal person. Why should poverty shut its door to court?

Supreme Court

'Person' here includes a company. Access to justice is for all.

Khader International, a company, wanted to sue Union Bank of India but could not pay the heavy court fee. It applied to sue as an **indigent person** under Order XXXIII. The bank objected: the rule speaks of a 'person' who is poor, which, it said, means only a human being.

The Supreme Court read the word with the purpose of the rule in mind: the aim is that **no one is denied justice only because of poverty**. A company is a legal person and can be just as unable to pay.

> ***Held*** → The word **'person' in Order XXXIII includes a juristic person** such as a company; it may sue as an indigent person if it satisfies the conditions.

> 🔗 ***How it locks into the section***
>
> An indigent suit is still a **suit** with all four essentials — the only special thing is that court fee is postponed; if the plaintiff wins, the fee is recovered from the losing side (O.XXXIII r.10–11).

✍️ Write it in the exam like this

Q. What is a suit? Explain its essentials and the special kinds of suits under the CPC.

1. Meaning — not defined; Hansraj Gupta; s.26 — instituted by plaint.
2. Four essentials — parties, cause of action, subject-matter, relief (with an example).
3. Special suits — representative (O.1 r.8), Government (s.79–80), indigent (O.XXXIII), minors (O.XXXII), interpleader (s.88, O.XXXV), summary (O.XXXVII), aliens/foreign States (ss.83–86).
4. Case — Union Bank v. Khader International (2001): 'person' in O.XXXIII includes a company.
5. Conclude — every suit, ordinary or special, needs the four essentials.

Quick self-test ANSWERS BELOW EACH

Q1. Is 'suit' defined in the CPC?

No. It is understood as a civil proceeding instituted by presentation of a plaint (Hansraj Gupta, Privy Council).

Q2. Name the four essentials of a suit.

Opposing parties, cause of action, subject-matter, relief.

Q3. What must be done before suing the Government?

Serve two months' written notice under s.80 (urgent relief possible with leave of court under s.80(2)).

Asked in past papers 6 QUESTIONS · 2013–2020

2013 · Part A	Interpleader suit
2014 · Part A	Representative suits
2015 · Part A	Indigent Suits
2016 · Part A	Interpleader suits
2017 · Part C	X is an indigent person He wants to file a suit against 'X' for recovery of Rs one lakh based on a promissory note What is the procedure that he should follow?
2020 · Part B	What is the procedure to be followed in suits by indigent persons?

★ *Memory hook*

Suit = P-C-S-R — Parties, Cause of action, Subject-matter, Relief. No plaint, no suit.

CHAPTER 3 · 8 PARTS

Parties to a suit — joinder, misjoinder, non-joinder

Order I · necessary and proper parties · representative suits

> **Big idea**
>
> **Who** should be in the case? Order I answers it: put in everyone **needed for an effective decree**, and no one who is just a stranger to the dispute.

📖 The story of this topic

Arjun, Farida and Kiran bought a building together. A tenant stops paying rent and damages the walls. Can the three owners file **one suit** together? **O.I r.1** says yes — plaintiffs may join if their right to relief arises from the **same act or transaction** and a **common question** of law or fact arises. The same two tests, in **r.3**, decide whether several **defendants** can be sued together.

Now suppose the owners forget to include Kiran. Is the suit dead? Usually not: **O.I r.9** says no suit fails for misjoinder or non-joinder — the court will simply **add** Kiran under **r.10(2)**, at any stage, even on its own. But there is one trap. If the missing person is a **necessary party** — someone without whom **no effective decree** can be passed at all — the **proviso to r.9** (added in

1976) makes the omission **fatal** unless he is brought in.

How do you know who is necessary? The Supreme Court in *Kasturi v. Iyyamperumal* gave two questions: (1) is there a **right to some relief** against him in respect of the controversy? (2) can an **effective decree** be passed **without** him? If both point to him, he is necessary. A **proper party** is different — his presence is not essential, but helps the court decide everything **completely**. In a partition suit, every co-owner is necessary; a tenant on the land may be a proper party.

Kasturi's own case shows the limit. He sued only to enforce an **agreement to sell**. Strangers claiming the land by an **independent title** wanted to join. The Court said no — that would turn a simple **contract suit** into a **title suit**. The plaintiff is dominus litis, master of his suit; the court adds people only when they are needed to decide **this** dispute.

Two more rules complete the picture. When a **large group** shares the same interest, a few may sue or defend for all under **r.8**, with the court's permission and a **public notice**, and the decree binds everyone. And objections about wrong parties must be raised at the **earliest opportunity** — **r.13** — or they are treated as **waived**.

Words to own DEFINITIONS

1 Necessary party O.I r.9 proviso

a person **without whom no effective decree** can be passed at all.

e.g. In a partition suit, every co-sharer.

2 Proper party O.I r.10(2)

a person whose presence is **not essential**, but helps the court decide the matter **completely and effectively**.

e.g. A tenant of the property in a title dispute between two owners.

3 Misjoinder O.I r.9

joining someone who **should not** be a party, or joining plaintiffs/defendants whose claims are not connected.

4 Non-joinder O.I r.9

leaving out someone who should have been a party.

5 Dominus litis

the plaintiff is the **master of the suit** — he chooses whom to sue (subject to the court's power to add parties).

The rules of Order I

Order I

- ✓ **Joinder of plaintiffs** r.1 — when the right to relief arises from the **same act or transaction** (or series) and a **common question** of law or fact would arise.
- ✓ **Joinder of defendants** r.3 — on the same two tests.
- ✓ **Representative suit** r.8 — numerous persons with the **same interest**: one or more may sue or defend for all, with the **court's permission**; notice to all by public advertisement; the **decree binds everyone** represented.
- ✓ **No suit fails** for misjoinder or non-joinder r.9 …
- ✓ Court may **strike out or add** parties at any stage, on application or on its own r.10(2); may substitute the right plaintiff where suit was filed in the wrong name by bona fide mistake r.10(1).
- ✓ Objections to misjoinder/non-joinder must be taken at the **earliest opportunity**, else deemed waived r.13.

× Exceptions / limits

✗ **Proviso to r.9** (added 1976): non-joinder of a **necessary party** IS fatal — the suit will fail if that party is not brought in.

✗ A person cannot be added just because he has **some interest** in the outcome — he must be needed for deciding the controversy in the suit (Kasturi).

Necessary vs proper party COMPARE

Necessary party

- no effective decree without him
- non-joinder → suit fails (r.9 proviso)
- e.g. all co-owners in partition

VS

Proper party

- presence useful, not essential
- non-joinder → not fatal
- e.g. a person in possession under the defendant

⚖️ Case story

Kasturi v. Iyyamperumal

2005 · Supreme Court of India (three judges)

👨‍🌾 Kasturi (buyer under an agreement)

👴 The vendor & his power-of-attorney holder (defendants)

🧍 Iyyamperumal & others (third parties claiming the land)

⚖️ Supreme Court



Kasturi filed a suit for **specific performance** of an agreement under which the owners had agreed to sell him land. Some outsiders applied under O.I r.10(2) to be added as defendants, saying they had an **independent title** and were in possession.

The Supreme Court asked two questions to test a **necessary party**: (1) is there a right to some relief against him in respect of the controversy? (2) can an effective decree be passed without him? In a suit to enforce a contract, the parties to the contract (and those who later got title from the seller) are relevant — **not** strangers claiming a title of their own.

> ***Held*** → Persons claiming an **independent title** adverse to the vendor are **neither necessary nor proper** parties to a suit for specific performance. Adding them would change the nature of the suit into a title dispute.

🔗 How it locks into the section

Remember the twin test for a **necessary party** and the purpose test for a **proper party** under O.I r.10(2): the presence must be needed to decide **the questions in this suit**, not some other dispute.

🧭 In real life

Fifty flat-owners in a colony want to stop a builder from closing a common road. Instead of 50 separate suits, three owners sue **for all** under O.I r.8 with the court's permission; a public notice goes out; the decree binds every owner.

✍️ Write it in the exam like this

Q. Who are necessary and proper parties? What is the effect of misjoinder and non-joinder?

1. Introduction — Order I; plaintiff as dominus litis.
2. Joinder of plaintiffs (r.1) and defendants (r.3) — same transaction + common question.
3. Necessary party — two tests (Kasturi); proper party — r.10(2); table of differences.
4. Effect — r.9: no suit defeated; proviso: necessary party's non-joinder fatal; r.10 power to add/strike out; r.13 early objection.
5. Representative suits — r.8.
6. Case — Kasturi v. Iyyamperumal (2005). Conclude.

Quick self-test ANSWERS BELOW EACH

Q1. Is non-joinder of a party always fatal?

No — O.1 r.9: no suit is defeated by misjoinder or non-joinder, **except** non-joinder of a **necessary party** (proviso).

Q2. Two tests for a necessary party?

(1) A right to relief against him on the matters in controversy; (2) no effective decree can be passed in his absence.

Q3. When must objections about parties be raised?

At the earliest possible opportunity, ordinarily before settlement of issues — O.1 r.13; otherwise waived.

Asked in past papers 6 QUESTIONS · 2013–2020

2014 · Part A	Non-Joinder and Mis Joinder of Parties
2014 · Part A	Representative suits
2016 · Part A	Parties to suit
2016 · Part C	'X' failed to include a necessary party, in the pleadings and what is the effect of non-joinder of a necessary party in a Civil Suit.
2017 · Part B	Who are the parties to suit? Explain "Necessary parties and proper parties".
2019 · Part C	What is the effect of non-joining of a necessary party in a suit?

★ **Memory hook**

Necessary = can't decide without him. Proper = better to decide with him. Only missing a **necessary** party sinks the suit.

CHAPTER 4 · 8 PARTS

Frame of suit and cause of action

Order II · the whole claim rule · splitting of claims

> **Big idea**
>
> **Bring your whole claim in one suit.** If you split it or leave out a part without leave, the law will not let you come back for the rest.

📖 The story of this topic

Meena rents her shop to Prakash for ₹20,000 a month. Prakash stops paying rent for six months. Meena is angry but cautious — she files a suit only for **three months' rent**, thinking she will 'see later' about the rest. This is exactly the mistake **Order II** is designed to stop.

O.II r.2(1) says the plaint must include **the whole of the claim** the plaintiff is entitled to make **on that cause of action**. Under **r.2(2)**, if Meena **omits or relinquishes** part of the claim — the other three months' rent — she can never sue for it later. Under **r.2(3)**, if she was entitled to **more than one relief** on the same cause of action (an injunction and damages for the same trespass, say) and leaves one out **without the court's leave**, that relief too is lost forever. The idea is simple: one cause of action, one

suit. A defendant should not be dragged to court again and again on the same facts.

So what exactly is a **cause of action**? Lord Esher's famous answer in *Read v. Brown* (1888): every fact which the plaintiff would have to prove, **if traversed**, to get judgment. It is the **bundle of facts**, not the evidence and not the law. For Meena: the lease, the rent agreed, the months it fell due, and Prakash's failure to pay.

But the bar is strict and technical, so courts insist it be proved. In *Gurbux Singh v. Bhooralal*, Bhooralal first sued only for **mesne profits**, then later for **possession**. Gurbux Singh cried 'Order II rule 2!' — but he never produced the **earlier plaint**. The Constitution Bench held the bar was **not proved**: you cannot know whether the causes of action are the same without reading the first pleadings. In contrast, in *Virgo Industries* the buyer first sued only for an **injunction** stopping the sale to others, though it already feared the seller would not perform — specific performance was available, was omitted without leave, and the later suit was **barred**.

Order II also lets a plaintiff **join several causes of action** against the same defendant in one suit (**r.3**). With a suit for **recovery of immovable property**, only certain claims may be joined without leave — **mesne profits, arrears of rent, and damages for breach of**

the contract under which the property is held (**r.4**). And if joinder makes the trial clumsy, the court may order **separate trials** (**r.6**).

Words to own DEFINITIONS

1 Cause of action O.VII r.1(e)

every fact which it would be necessary for the plaintiff to prove, if traversed, to support his right to judgment (Lord Esher in *Read v. Brown*, 1888). It is the **bundle of facts**, not the evidence and not the law.

e.g. For a loan suit: the loan, the promise to repay, the due date, and non-payment.

2 Relinquishment O.II r.2(2)

giving up part of a claim — if done (or omitted) in a suit, that part **cannot be sued for later**.

3 Leave of court O.II r.2(3)

permission to sue later for a relief omitted now.

Order II in five rules

Order II

- ✓ **Frame the suit** so as to give a ground for **final decision** and to **prevent further litigation** r.1.
- ✓ **Whole claim** arising from the cause of action must be included r.2(1).
- ✓ Part of a claim **omitted or relinquished** → cannot be sued for afterwards r.2(2).

- ✓ A person entitled to **more than one relief** on the same cause of action who omits one **without leave** → cannot sue for it later r.2(3).
- ✓ Several **causes of action** against the same defendant may be **joined** in one suit r.3; with recovery of immovable property only some claims may be joined without leave — mesne profits, arrears of rent, damages for breach of the contract under which property is held r.4; court may order **separate trials** if joinder is inconvenient r.6.

× *Exceptions / limits*

- ✗ The bar applies only where the **cause of action in both suits is the same** — different causes, different suits.
- ✗ Leave of the court under r.2(3) saves an omitted **relief**; it cannot revive a **relinquished** part of the claim.
- ✗ The defendant must **plead** the bar and **prove** identity of causes by producing the earlier **plaint** (Gurbux Singh).

Is the second suit barred by O.II r.2? FLOW

1. **Same cause of action?**
   compare the earlier plaint with the new one
2. **Was the new claim/relief available then?**
   could it have been claimed in the first suit?
3. **Was it omitted or relinquished?**
   not claimed in the first suit
4. **Was leave obtained?**
   for a separate relief under r.2(3)
5. **If no leave → barred**
   the second suit fails

⚖️ Case story

Gurbux Singh v. Bhooralal

1964 · Supreme Court of India (Constitution Bench)

🧔 Bhooralal (plaintiff) 👳 Gurbux Singh (defendant) ⚖️ Supreme Court

🧔 **Bhooralal**

First I sued only for mesne profits from my property. Now I sue for possession of it.

👳 **Gurbux Singh**

Barred! You should have asked for possession the first time. Order II rule 2!

⚖️ **Supreme Court**

Show us the first plaint. How do we know the causes of action are the same?

👳 **Gurbux Singh**

Er… the plaint is not on the record.

Bhooralal first filed a suit only for **mesne profits** against Gurbux Singh for the period he was in wrongful possession. Later he filed a second suit for **possession** of the same property. Gurbux Singh pleaded the bar of O.II r.2(3): possession was a relief that should have been sought in the first suit.

The Supreme Court explained that the plea is technical and must be strictly proved: the defendant must show (1) the second suit is on the **same cause of action** as the first, (2) the plaintiff was entitled to more than one relief on it, and (3) he omitted the relief now claimed **without leave**. Identity of cause of action can be judged only by **reading the pleadings of the earlier suit** — and the earlier plaint had not been produced.

> ***Held*** → The plea of O.II r.2 **failed** because the defendant did not prove identity of the causes of action; a plea of bar must be established by producing the earlier pleadings.

> 🔗 ***How it locks into the section***
> Learn the three ingredients of r.2(3) from this case — **same cause, more than one relief, omission without leave** — and that the bar is **not presumed**.

⚖️ ***Case story***

Virgo Industries (Eng.) Pvt. Ltd. v. Venturetech Solutions Pvt. Ltd.

2013 · Supreme Court of India

🏢 Venturetech (buyer) 🏭 Virgo (seller)



Venturetech

Stop Virgo from selling the property to anyone else! (suit for injunction)



Venturetech

...and now, a new suit: enforce the sale to us (specific performance).



Virgo

You already feared we would break the deal — you could have asked for specific performance then!



Supreme Court

Correct. Same cause of action, relief omitted without leave → barred.

Venturetech had agreements to buy properties from Virgo. Fearing that Virgo would sell to others, it first filed suits for **permanent injunction** restraining alienation. Later it filed suits for **specific performance** of the same agreements.

Since the first suits were based on the apprehension that Virgo would not honour the agreements, the relief of specific performance was **available** then. Venturetech neither claimed it nor obtained leave.

> ***Held*** → The later suits for specific performance were **barred by O.II r.2(3)**.

> 🔗 ***How it locks into the section***
> O.II r.2 protects defendants from being dragged to court again and again on the **same set of facts**.

✍️ Write it in the exam like this

Q. Explain the rule against splitting of claims under Order II Rule 2 CPC.

1. Introduction — O.II r.1: frame suit to avoid further litigation.
2. Cause of action — meaning (Read v. Brown).
3. r.2(1) whole claim; r.2(2) omitted/relinquished part barred; r.2(3) relief omitted without leave barred.
4. Conditions for the bar — same cause of action, relief available, omitted without leave; defendant must plead and prove by producing earlier plaint.
5. Cases — Gurbux Singh v. Bhooralal (1964); Virgo Industries (2013).
6. Joinder of causes — r.3, r.4, r.6. Conclude: rule protects defendants from multiplicity.

Quick self-test ANSWERS BELOW EACH

Q1. What is a cause of action?

Every fact the plaintiff must prove, if traversed, to get a decree — the bundle of facts (Read v. Brown).

Q2. Difference between r.2(2) and r.2(3)?

r.2(2): part of a **claim** omitted/relinquished — cannot be sued later. r.2(3): one of several **reliefs** omitted without leave — cannot be sued later; leave saves it.

Q3. Who must prove the bar, and how?

The defendant, by producing the pleadings of the earlier suit to show identity of cause of action (Gurbux Singh).

Asked in past papers 4 QUESTIONS · 2013–2020

2013 · Part A	Cause of Action
2014 · Part A	Cause of Action
2015 · Part A	Cause of action
2016 · Part C	A plaintiff, who wants to file a suit in the lower court and whose cause of action is time barred, files a condone relay petition in the same court. Is that petition is maintainable.

★ *Memory hook*

One cause, one suit, whole claim. Want to split? Take **leave** first — or lose it forever.

CHAPTER 5 · 8 PARTS

Institution of suits — plaint, return and rejection

s.26 · Order IV · Order VII rr.10–11

> **Big idea**
>
> A suit is born when a **plaint** (with an affidavit) is presented to the court. A plaint that discloses no case can be **rejected** at the threshold.

📖 The story of this topic

Kiran wants to sue a builder who took his advance and never delivered the flat. His lawyer drafts a **plaint** with the particulars listed in **O.VII r.1** — the court's name, the parties' names and addresses, the **facts constituting the cause of action and when it arose**, the facts showing the court's **jurisdiction**, the **relief**, and the **valuation** for jurisdiction and court fee. The plaint is **verified** (O.VI r.15) and, since 2002, its facts must be supported by an **affidavit** (**s.26(2)**). It is presented **in duplicate** to the court (**O.IV r.1**) — and the suit was **instituted** the moment the plaint was presented; registration in the **register of civil suits** under **O.IV r.2** only records it.

Before summons goes to the builder, the court looks at the plaint carefully. Two things can go wrong. If Kiran filed in the **wrong court** — say he seeks delivery of a

flat in Hyderabad but filed in Warangal, or the claim is beyond the court's money limit — the plaint is returned under **O.VII r.10**, to be presented in the **proper court**. The case is not over; it just moves.

But if the defect is in the plaint **itself**, the plaint is rejected under **O.VII r.11**: (a) it discloses **no cause of action**; (b) the relief is **undervalued** and not corrected; (c) the **stamp** is insufficient and not made good; (d) the suit is **barred by any law** — limitation, for example; (e) it is not filed in **duplicate**; (f) the plaintiff did not comply with **r.9** (copies for service). For this test the court reads **only the plaint and its documents**, not the builder's defence.

Two stories show why this power matters. In *T. Arivandandam* (1977), after a tenant lost eviction proceedings at every level, his son (a partner in the tenant's firm) filed suit after suit with cleverly drafted plaints just to delay eviction. Justice Krishna Iyer told trial courts to read the plaint **meaningfully, not formally**, and if clever drafting has created only an **illusion** of a cause of action, to nip it in the bud. In *Dahiben* (2020), sellers sued in 2014 to cancel a 2009 sale deed, saying part of the price was unpaid. Their own plaint showed they had signed the deed and received cheques in 2009 — the suit was **time-barred**, and the plaint was rejected under **r.11(a) and (d)**, which can be done **at any stage**.

One more point students forget: rejection of a plaint is a **deemed decree** under s.2(2), so a **first appeal** lies. And under **r.13**, rejection does **not** by itself stop the plaintiff from presenting a **fresh plaint** on the same cause of action.

From plaint to registered suit FLOW

1. **Draft the plaint**
   particulars under O.VII r.1; verification under O.VI r.15
2. **Affidavit**
   facts in the plaint supported by affidavit
   s.26(2)
3. **Present in duplicate**
   to the court or its officer
   O.IV r.1
4. **Scrutiny**
   jurisdiction, court fee, valuation, limitation, cause of action
5. **Registered**
   entered in the register of civil suits
   O.IV r.2
   ; summons issued

Return vs rejection of plaint

O.VII rr.10–11

- ✓ **Return** r.10 — the court has **no jurisdiction** (territorial, pecuniary or subject-matter); the plaint is returned to be presented in the **proper court**.

✓ **Rejection** r.11 — (a) **no cause of action** disclosed; (b) relief **undervalued** and not corrected within time; (c) **insufficient stamp** and not made good; (d) suit appears from the plaint to be **barred by any law** (e.g. limitation); (e) not filed in **duplicate**; (f) non-compliance with **r.9** (copies for service).

✓ Court looks **only at the plaint and documents** filed with it — not the defence.

✓ Rejection is a **decree** (s.2(2)) → appealable; a **fresh plaint** on the same cause of action is not barred merely by rejection r.13.

× Exceptions / limits

✗ Clever drafting that creates an **illusion** of a cause of action does not save a vexatious plaint (Arivandandam).

✗ Rejection can be ordered **at any stage** of the suit (Dahiben, 2020).

Return vs rejection COMPARE

Return (r.10)	VS	Rejection (r.11)
• wrong court		• defect in the plaint itself
• plaint goes back to be filed in the right court		• suit ends here
• not a decree; appealable order		• a decree — appeal lies; fresh plaint may be filed

⚖️ *Case story*

T. Arivandandam v. T.V. Satyapal

1977 · Supreme Court of India (Krishna Iyer J.)

🏠 Landlord's side · 🧑 Occupant filing suit after suit · ⚖️ Supreme Court

🧑 **Occupant**

I lost the eviction case everywhere. But here is a fresh suit with a new story!

🏠 **Landlord**

This is just to stop the eviction again.

⚖️ **Krishna Iyer J.**

Read the plaint meaningfully, not formally. If it is vexatious — nip it in the bud.

⚖️ **Krishna Iyer J.**

And the lawyer who drafted it owes a duty to the court too.

After eviction proceedings had been fought and lost through every level, a fresh civil suit was filed with a cleverly drafted plaint, plainly to delay the eviction once more.

Justice Krishna Iyer told trial courts: on a **meaningful — not formal — reading** of the plaint, if it is **manifestly vexatious and without merit**, use the power under O.VII r.11; if clever drafting has created the illusion of a cause of action, nip it in the bud at the first hearing.

Held → Trial courts must reject plaints that disclose no real cause of action and abuse the process of court; frivolous litigation must be stopped at the start.

🔗 How it locks into the section

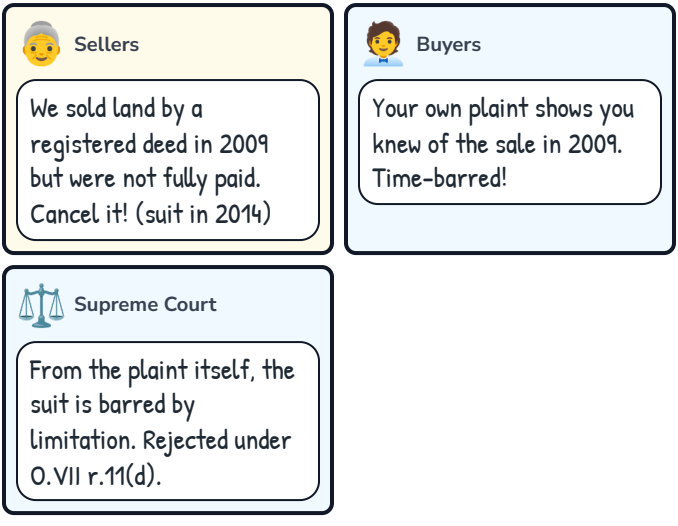
This is the spirit of **O.VII r.11(a)** — 'no cause of action' means no **real** cause, not just whatever the drafting shows.

⚖️ Case story

Dahiben v. Arvindbhai Kalyanji Bhanusali

2020 · Supreme Court of India

👴 Sellers (plaintiffs) 🤵 Buyers (defendants)



The plaintiffs sued in December 2014 to cancel a 2009 registered sale deed, alleging part of the price

was unpaid. Their own plaint showed they had signed the deed and received the cheques in 2009.

The Court said the power under O.VII r.11 can be exercised **at any stage** of the suit, by looking at the averments in the plaint and the documents with it; non-payment of part of the price does not by itself make a sale void — the remedy was to sue for the balance.

> ***Held*** → The plaint was **rejected** under O.VII r.11(a) (no real cause of action) and r.11(d) (barred by limitation).

> 🔗 ***How it locks into the section***
> r.11(d) — 'barred by any law' — includes the **Limitation Act**.

✍️ Write it in the exam like this

Q. Distinguish between return and rejection of plaint.

1. Introduction — institution by plaint (s.26, O.IV); particulars (O.VII r.1).
2. Return — O.VII r.10: lack of jurisdiction; procedure (r.10A); appealable order.
3. Rejection — O.VII r.11 grounds (a)–(f); court looks only at plaint.
4. Effect — rejection is a decree (appeal); fresh plaint allowed (r.13).
5. Cases — T. Arivandandam (1977); Dahiben (2020).
6. Comparison table and conclusion.

Quick self-test ANSWERS BELOW EACH

Q1. What document must accompany the plaint since 2002?

An **affidavit** supporting the facts — s.26(2).

Q2. Lack of territorial jurisdiction — return or rejection?

Return under O.VII r.10.

Q3. Is rejection of a plaint appealable?

Yes — it is a deemed decree under s.2(2); and a fresh plaint is not barred by the rejection itself (O.VII r.13).

Asked in past papers 8 QUESTIONS · 2013–2020

2013 · Part B	Explain plaint and rules that are governing pleadings
2014 · Part A	Plaint
2014 · Part B	Discuss about the provisions relating to summons after institution of suits.
2016 · Part A	Essentials of Plaint
2016 · Part B	What is the difference between return of the plaint and rejection of the plaint?
2018 · Part A	Essentials of Plaint.
2018 · Part B	What is the difference between Return of Plaint and Rejection of Plaint?
2020 · Part C	'A' want to file a suit, against 'B' for recovery of Rs. 10,000/- based on a negotiable instrument. Draft a plaint accordingly.

★ *Memory hook*

Wrong court → return. Bad plaint → reject. Reject for: no **c**ause, **u**ndervalued, **s**tamp short, **b**arred, **d**uplicate missing, r.**9** ignored — 'CUSB-D-9'.

CHAPTER 6 · 8 PARTS

Bar of suits — jurisdiction of civil courts (s.9)

Suits of a civil nature · express and implied bars

> **Big idea**
>
> **Every civil dispute can go to a civil court — unless a law expressly or impliedly takes it away.** Jurisdiction is the rule; exclusion is the exception.

📖 The story of this topic

Picture the civil court as a big **public hospital**.

Section 9 is the sign at its gate: all suits of a civil nature are admitted — unless a law expressly or impliedly sends them elsewhere. The patient (plaintiff) does not need special permission; the burden is on whoever says 'not here' to show the bar.

What makes a dispute 'civil'? It must be about **private rights and obligations** — property, money, contract, status, an office. Suppose Venkat is removed as the hereditary priest of a village temple and loses the **land and offerings** attached to the post. Even though the dispute involves **religious rites**, **Explanation I** makes it civil because it is about a right to **property and an office**. **Explanation II** adds that it does not matter whether the office carries **fees** or is tied to a particular **place**. But if two groups merely argue about

the correct ritual, with no property or office involved, that is **not** a civil suit.

The *Malankara Church* case (*P.M.A. Metropolitan*, 1995) shows this on a grand scale. Two factions fought over control of churches, properties and the office of church heads. One side said 'religion — courts stay out!' The Supreme Court said the word shall and the phrase 'all suits' in s.9 give civil courts jurisdiction over **every** civil dispute unless barred — and rights to office and property are civil, even if religious questions must be examined to decide them.

Now the exceptions. An **express bar** is written in a statute: election disputes go only by **election petition** (Art. 329(b) and the Representation of the People Act); civil courts cannot interfere with **SARFAESI** action (s.34) or **RERA** matters (s.79). An **implied bar** arises when a law creates a **new right** and its **own forum** — like rights under the Industrial Disputes Act (*Premier Automobiles*, 1975).

But even a bar has limits. In *Dhulabhai* (1968), tobacco dealers paid sales tax under a provision that discriminated against goods from outside the State — later held unconstitutional. The Act said its assessments could not be questioned in civil courts. Chief Justice Hidayatullah laid down the famous principles: a tribunal **cannot declare its own Act unconstitutional**; tax collected under an

unconstitutional provision can be recovered by a **civil suit for refund**; civil courts may still step in where the authority ignored the Act's provisions or **fundamental principles of judicial procedure**; and exclusion of civil courts is not readily inferred. As *Ganga Bai* (1974) puts it, every person has an **inherent right** to bring a civil suit unless a statute bars it.

Section 9 in plain words

s.9

Civil courts shall have jurisdiction to try **all suits of a civil nature**, except suits whose cognizance is **expressly or impliedly barred**.

- ✓ **Civil nature** = a dispute about **private rights and obligations** — property, money, contracts, status, office.
- ✓ **Explanation I** — a suit about a right to **property or an office** is civil even if it depends on questions of **religious rites or ceremonies**.
- ✓ **Explanation II** — it does not matter whether any **fees** are attached to the office or whether it is tied to a particular **place**.

× Exceptions / limits

✗ **Express bar** — a statute says so: e.g. election disputes (Art. 329(b) and the Representation of the People Act), Income-tax Act, 2025 s.526 (earlier s.293 of the 1961 Act), SARFAESI Act s.34, RERA s.79.

✗ **Implied bar** — a statute creates a **new right** and provides its **own special forum** (Premier Automobiles v. Wadke, 1975 — rights under the Industrial Disputes Act); or public policy.

✗ Even where barred, civil courts can examine cases where the authority acted **without jurisdiction**, violated **natural justice**, or the provision is **unconstitutional** (Dhulabhai).

Civil or not? COMPARE

Civil nature ✔

- right to property
- right to a religious office with its emoluments
- right to worship in a temple
- recovery of money, damages

VS

Not civil ✘

- purely religious rites or caste questions (no property/office involved)
- mere dignity or honour
- political questions
- right to vote or contest an election (statutory — election petition only)
- matters exclusively for special tribunals

⚖️ *Case story*

Dhulabhai v. State of Madhya Pradesh

1968 · Supreme Court of India (Constitution Bench, Hidayatullah C.J.)

🧑‍💼 Dhulabhai & tobacco dealers · 🏛️ State of M.P. · ⚖️ Supreme Court

🧑‍💼 **Dealers**

The sales-tax law taxed our imported tobacco unfairly. It is unconstitutional — refund our money!

🏛️ **State**

The Sales Tax Act says civil courts cannot question assessments. Suit barred!

⚖️ **Supreme Court**

A tax tribunal cannot declare its own Act unconstitutional. For that, the civil court remains open.

🧑‍💼 **Dealers**

So our refund suit can go on!

Tobacco dealers in the old Madhya Bharat area paid sales tax under provisions that discriminated against goods brought from outside the State. Those provisions had been held unconstitutional. The dealers filed suits for **refund**. The State relied on a section of the Sales Tax Act which barred civil courts from questioning assessments.

Chief Justice Hidayatullah laid down the famous **principles on exclusion of civil court jurisdiction**: (1) where a statute gives finality to the orders of special

tribunals, the civil court's jurisdiction is excluded **if there is an adequate remedy** there — but civil courts can still look at cases where the provisions were not followed or fundamental principles of judicial procedure were violated; (2) where the provision itself is challenged as **unconstitutional**, the suit lies, because the tribunal cannot decide that; (3) where a tax is collected under a provision declared unconstitutional, a **suit for refund** lies; (4) exclusion of civil courts is **not to be readily inferred**.

> ***Held*** → The suits for refund were **maintainable**; the bar in the Sales Tax Act did not cover tax levied under unconstitutional provisions.

> 🔗 ***How it locks into the section***
>
> This case is the **map of s.9's exceptions** — express bar, implied bar, and when the civil court still steps in.

⚖️ ***Case story***

Most Rev. P.M.A. Metropolitan v. Moran Mar Marthoma

1995 · Supreme Court of India

⛪ Two factions of the Malankara Church ⚖️ Supreme Court

Faction A

Who is the rightful head of our church and its properties? Only the civil court can settle it.

Faction B

This is a religious matter. Civil courts cannot interfere!

Supreme Court

Rights to an office and property are civil — even if they turn on religious questions. Explanation I to s.9.

Two groups in the Malankara Orthodox Syrian Church fought over **control of churches, properties and the office** of church heads. One side argued that disputes about religion were outside the civil courts.

The Supreme Court read s.9 widely: the words 'shall' and 'all suits of a civil nature' show that civil courts have **jurisdiction over every civil dispute** unless barred. A dispute about **an office and property** is civil, even if deciding it requires looking into religious practice.

> ***Held*** → The suits were **civil in nature** and maintainable under s.9 read with Explanation I.

> 🔗 ***How it locks into the section***
>
> **Explanation I** in action — religion is the background; **property and office** make it civil.

📌 Also remember

Quote to remember (Ganga Bai v. Vijay Kumar, 1974): There is an inherent right in every person to bring a suit of a civil nature, and unless the suit is barred by statute one may, at one's peril, bring a suit of one's choice.

✍️ Write it in the exam like this

Q. Explain the jurisdiction of civil courts under Section 9 CPC. When is it barred?

1. Introduction — s.9 text; 'shall' and 'all suits'.
2. Suit of a civil nature — meaning; Explanations I and II with example.
3. Express bar — examples; implied bar — Premier Automobiles.
4. Dhulabhai principles — adequacy of remedy, unconstitutionality, refund, not readily inferred.
5. Cases — PMA Metropolitan (1995); Ganga Bai (1974).
6. Conclude — jurisdiction is the rule, exclusion the exception.

Quick self-test ANSWERS BELOW EACH

Q1. What does 'civil nature' mean?

A dispute about private rights and obligations — property, money, contract, status, office — as opposed to purely religious, social, political or criminal matters.

Q2. Give two express bars.

Election disputes (Art. 329(b), RP Act); s.34 SARFAESI Act; s.79 RERA; s.526 Income-tax Act, 2025 (earlier s.293 of the 1961 Act).

Q3. Can a civil court entertain a suit despite a bar clause?

Yes, where the authority acted without jurisdiction, violated natural justice, or the provision is unconstitutional (Dhulabhai).

Asked in past papers 2 QUESTIONS · 2013–2020

2013 · Part C	In a suit for specific performance of sale agreement of agricultural land by 'A' to 'B', Court decides to frame incidental issue 'whether 'B' is a farmer or not'. Whether court has jurisdiction to decide such issue? Disc
2019 · Part B	What are various kinds of jurisdiction of civil court, under CPC.

★ *Memory hook*

s.9 = **'All civil suits — unless barred.'** Bar must be **express or clearly implied** — never lightly inferred (Dhulabhai).

CHAPTER 7 · 7 PARTS

Res sub judice — stay of suit (s.10)

Two suits on the same matter · stay the later one

> **Big idea**
>
> If the **same matter** is already being fought in an **earlier suit**, the later suit's **trial waits**. Two courts should not race to opposite answers.

📖 The story of this topic

Rahul sues his cousin Ajay in Hyderabad, claiming a house as his by inheritance. While that suit is going on, Ajay files his own suit in another civil court in Hyderabad claiming the **same house** against Rahul on the **same title dispute**. If both courts go ahead, one may say 'Rahul owns it' and the other 'Ajay owns it' — chaos. **Section 10** prevents that race: the court of the **later suit** must stay the trial until the earlier suit is decided.

The conditions are like a checklist: (1) **two suits**, one earlier, one later; (2) the **matter in issue** in the later suit is **directly and substantially in issue** in the earlier one; (3) **same parties** or those claiming under them; (4) litigating under the **same title**; (5) the earlier suit is **pending** in a **competent** court in India (or the

Supreme Court). Tick all five, and the second trial waits.

Notice the exact words: s.10 stops the **trial**, not the **filing**. Ajay's suit can still be registered, and the court may grant **interim orders** like a temporary injunction. In *Indian Bank v. Maharashtra State Co-op. Marketing Federation* (1998), the Supreme Court explained that in a **summary suit** the 'trial' begins only after leave to defend, so the court could still decide the leave application.

How do we test 'directly and substantially in issue'? *Aspi Jal* (2013) gives the answer. Landlords filed two eviction suits in 2004 — one for bona fide need and one for **non-user** over earlier years — and a third in 2010 for non-user during the **six months just before it**. The tenant asked to stay the third suit, and the trial court and High Court agreed. The Supreme Court set the stay aside: s.10 applies only when the **whole subject-matter** is the same, so that the decision in the first suit would operate as **res judicata** in the second. Non-use in a different period is a different fact.

Two last points. The **Explanation** says a suit pending in a **foreign court** does not stop an Indian court. And a decree passed in breach of s.10 is **not a nullity** — s.10 is a rule of procedure. Where s.10 does not strictly apply but justice needs it, the court may still stay or

consolidate suits using its **inherent power** under **s.151**.

Section 10 — conditions

s.10

- ✓ **Two suits** — one instituted earlier, one later.
- ✓ The **matter in issue** in the later suit is **directly and substantially** in issue in the earlier suit.
- ✓ **Same parties**, or parties under whom they claim.
- ✓ Litigating under the **same title**.
- ✓ The earlier suit is **pending** in a court in India (or a court beyond India set up by the Central Government, or the Supreme Court) **competent** to grant the relief.

× Exceptions / limits

- ✗ **Explanation**: a suit pending in a **foreign court** does not stop an Indian court from trying the same matter.
- ✗ s.10 stays the **trial**, not the **institution** — the later suit can be filed and interim orders can be passed.
- ✗ A decree passed in breach of s.10 is **not a nullity**.
- ✗ Where s.10 does not strictly apply, the court may still stay or **consolidate** suits under its inherent power s.151.

Res sub judice vs res judicata TABLE

Point	Sub judice (s.10)	Res judicata (s.11)
Earlier matter is	**pending**	**decided**
Bars	**trial** of the later suit	**trial** of the later suit/issue altogether
Purpose	avoid conflicting decisions running in parallel	end litigation; no second trial
Foreign court	pending foreign suit — no bar	foreign judgment may be conclusive (s.13)

Case story

Aspi Jal v. Khushroo Rustom Dadyburjor

2013 · Supreme Court of India

🏠 Landlords (Aspi Jal & another)

🧑‍💼 Tenant (Khushroo Rustom Dadyburjor)

⚖️ Supreme Court

Landlords

2004: two suits — we need the flat, and he has not used it for years.

Landlords

2010: a third suit — non-use in the six months before this suit.

Tenant

Stay the third suit under s.10! Same ground — non-user.

Supreme Court

Different period = different facts. No stay.

In 2004 the landlords filed two eviction suits in the Small Causes Court, Mumbai — one for **bona fide requirement** and one for **non-user** over earlier years. In 2010 they filed a third suit for non-user during the **six months immediately before it**. The tenant asked for the third suit to be stayed under s.10.

The Supreme Court held that s.10 applies only when the **whole subject-matter in controversy** in the two suits is the same, so that the decision in the earlier suit would operate as **res judicata** in the later one. Here, non-user in different periods raised different facts; a decision in the first suit would not decide the others.

> ***Held*** → Section 10 was **not attracted**; the third suit could proceed.

> 🔗 ***How it locks into the section***
> The test for 'directly and substantially in issue' — **would the first decision be res judicata in the second?** If not, no s.10 stay.

📌 ***Also remember***

Also remember **Indian Bank v. Maharashtra State Co-op. Marketing Federation (1998)**: s.10 bars the **trial**, which in a summary suit (O.XXXVII) begins only after leave to defend — so the court can still hear the leave application.

✍️ Write it in the exam like this

Q. Explain the doctrine of res sub judice. Distinguish it from res judicata.

1. Meaning — 'under judgment'; s.10 text; object: avoid conflicting decisions, multiplicity.
2. Five conditions.
3. Effect — trial stayed, not institution; interim orders possible; foreign suit no bar; decree not a nullity; s.151.
4. Cases — Indian Bank (1998); Aspi Jal (2013).
5. Comparison table — sub judice vs res judicata.
6. Conclusion.

Quick self-test ANSWERS BELOW EACH

Q1. Does s.10 bar filing of the second suit?

No — only its trial; the suit can be instituted and interim relief given.

Q2. Is a suit pending in London a bar to an Indian suit?

No — Explanation to s.10.

Q3. What if the matters overlap only partly?

s.10 does not apply; the court may still stay or consolidate under its inherent power, s.151, if justice requires (in Aspi Jal the parties were left free to ask the trial court to hear the suits together).

Asked in past papers 2 QUESTIONS · 2013–2020

2016 · Part B Narrate the distinction between doctrines of "Sub Judice" and "Rest Judicata".

2018 · Part A Doctrine of Sub Judice and Resjudicata.

★ *Memory hook*

Sub judice = 'still under the judge'. Same matter, same parties, same title, earlier suit pending → **later trial waits.**

CHAPTER 8 · 12 PARTS

Res judicata (s.11) and foreign judgments (ss.13–14)

A matter once decided is decided forever

> **Big idea**
>
> **Once a competent court has heard and finally decided a matter between the same parties, it cannot be reopened.** One fight, one finish.

📖 The story of this topic

Sunita sues her neighbour Ramesh, claiming a strip of land is hers. After a full trial, the court decides it belongs to **Ramesh**. Sunita does not appeal. Five years later she files a fresh suit claiming the same strip. Should Ramesh have to fight all over again? **Section 11** says no. A matter **heard and finally decided** between the same parties by a competent court is **res judicata** — a thing already judged.

Three old maxims stand behind this rule: no one should be **vexed twice** for the same cause; it is in the **public interest** that litigation should end; and a judicial decision must be **accepted as correct**. Together they give society **finality**.

For the bar to apply, five things must line up: the matter is **directly and substantially in issue** in both suits; the **same parties** (or those claiming under

them); the **same title**; the former court was **competent**; and the matter was **heard and finally decided**. If Sunita's first suit had been dismissed only for **default** or **withdrawn**, there was no decision on merits — so s.11 does not apply (though a fresh suit may still be barred by **O.IX r.9** or, if withdrawn without leave, **O.XXIII r.1(4)**). If the first decree was obtained by **fraud** or passed **without jurisdiction**, it does not bind either.

The eight Explanations add depth. The most famous is **Explanation IV — constructive res judicata**. Suppose in the first suit Sunita relied only on a sale deed, though she also had a **gift deed** she could have pleaded. She cannot now file a new suit based on the gift deed: any ground that **might and ought** to have been raised is treated as raised and decided. **Explanation V** adds that a relief claimed but **not expressly granted** is deemed **refused**; **Explanation VI** makes a **representative** suit bind all interested persons — but only if the earlier case was **bona fide** (*Forward Construction*, 1986, where a petition set up by a rival builder did not bind the residents).

The principle travels beyond suits. *Satyadhyan Ghosal* (1960) applied it between **two stages of the same case** — while allowing an unappealed **interlocutory order** to be challenged in the appeal from the final order (there, the landlords won). *Daryao* (1961)

applied it to **writ petitions**: after losing an Art. 226 petition on merits in the High Court, the petitioners could not file the same case under Art. 32. But *Ghulam Sarwar* (1967) said it does **not** apply to successive **habeas corpus** petitions — liberty comes first.

Finally, **foreign judgments**. A Tirupati couple married under Hindu law; the husband obtained a divorce in **Missouri, USA**, on 'irretrievable breakdown', without the wife's submission to that court. In *Y. Narasimha Rao* (1991), the Supreme Court refused to recognise it under **s.13**: the court was not competent, the ground was not one known to the law under which they married, and the wife was not fairly heard. A foreign judgment is conclusive **except** in the six cases of **s.13(a)–(f)**; under **s.14**, the court presumes the foreign court's competence when a certified copy is produced, unless the contrary is shown.

Three Latin roots of res judicata

🛑

Nemo debet bis vexari pro una et eadem causa

no one should be troubled twice for the same cause

🏛️

Interest reipublicae ut sit finis litium

it is in the public interest that litigation should end

✅

Res judicata pro veritate accipitur

a judicial decision must be accepted as correct

Section 11 — five conditions

s.11

- ✓ The matter is **directly and substantially in issue** in the later suit, and was so in the **former suit**.
- ✓ Between the **same parties** or parties under whom they claim.
- ✓ Litigating under the **same title**.
- ✓ The former court was **competent** to try the later suit (or the issue — see Expl. VIII).
- ✓ The matter was **heard and finally decided** by that court.

× Exceptions / limits

- ✗ No res judicata where the earlier decision was **without jurisdiction** (a nullity), obtained by **fraud or collusion**, or the suit was dismissed on a **technical ground** (default, withdrawal) without a decision on merits.
- ✗ A pure **question of law** decided wrongly may not bind when the **law later changes**.
- ✗ Does **not** apply to successive **habeas corpus** petitions (Ghulam Sarwar, 1967) — personal liberty comes first.

The eight Explanations — in one line each

TABLE

Expl.	What it says
I	'Former suit' = suit **decided earlier**, whether or not instituted earlier.
II	Competence is judged **without regard to appeal** provisions.
III	The matter must have been **alleged by one party and denied or admitted** by the other.
IV	**Constructive res judicata** — anything that **might and ought** to have been made a ground of attack or defence is deemed to have been in issue.
V	Relief claimed but **not expressly granted** is deemed **refused**.
VI	**Representative suits** about a public or common private right bind all persons interested.

Expl.	What it says
VII	Applies to **execution** proceedings too.
VIII	A decision of a court of **limited jurisdiction**, competent to decide that issue, binds even if it could not try the later suit.

Res judicata vs estoppel COMPARE

Res judicata

- a **court's decision** binds
- bars the **trial** of a suit/issue
- public policy — end of litigation
- s.11 CPC

VS

Estoppel

- a **party's own conduct/statement** binds
- a rule of **evidence**
- equity — fairness between parties
- Bharatiya Sakshya Adhiniyam (earlier Evidence Act s.115)

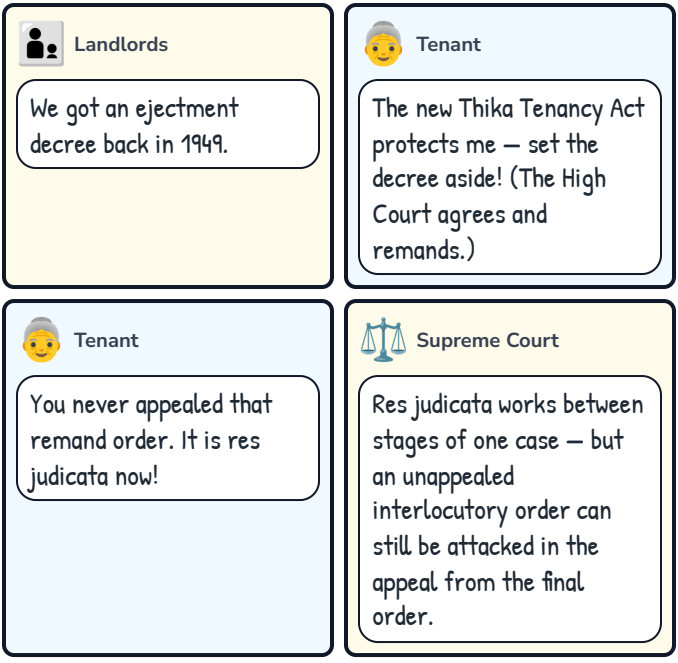
⚖️ Case story

Satyadhyan Ghosal v. Deorajin Debi

1960 · Supreme Court of India

👨‍👦 The Ghosals (landlords) 👴 Deorajin Debi (tenant)

⚖️ Supreme Court



The landlords obtained an **ejectment decree in 1949**. Relying on the new **Calcutta Thika Tenancy Act**, the tenants applied under its s.28 to rescind it; the High Court, in revision, held s.28 applied and **remanded**, and the decree was rescinded. In the Supreme Court the tenants argued that the landlords, not having appealed the remand order, were **barred by res judicata**.

The Supreme Court explained that the principle of res judicata applies not only between two suits but also **between two stages of the same litigation**: a court that has decided an issue at an earlier stage cannot re-decide it at a later stage. But an **interlocutory order** (like a remand order) that was not appealed can

still be challenged in an appeal against the **final order** (compare s.105 CPC).

> ***Held*** → Res judicata applies between stages of the same litigation, but an **interlocutory order** that was not appealed can still be challenged in an appeal from the final order; the **landlords' appeal was allowed**.

> 🔗 ***How it locks into the section***
>
> Shows that s.11 is a **principle**, not just a section: it governs suits, stages of a suit, and (by general principles) writ petitions.

⚖️ ***Case story***

Daryao v. State of U.P.

1961 · Supreme Court of India (Constitution Bench)

👨‍🌾 Daryao & others (petitioners) 🏛️ Allahabad High Court ⚖️ Supreme Court



The petitioners' writ petitions under **Article 226** had been heard and dismissed **on merits** by the Allahabad High Court. They then filed fresh petitions under **Article 32** before the Supreme Court on the same facts.

The Court held that the rule of res judicata rests on **public policy**, so it applies to writ proceedings as well. A decision on merits by a High Court under Art. 226 binds the parties and bars a fresh Art. 32 petition on the same matter. It would be different if the High Court petition had been dismissed **in limine** without a speaking order, or on laches, or because an alternative remedy existed.

> ***Held*** → General principles of **res judicata apply to writ petitions**; a High Court's decision on merits bars a later Article 32 petition on the same facts.

🔗 How it locks into the section

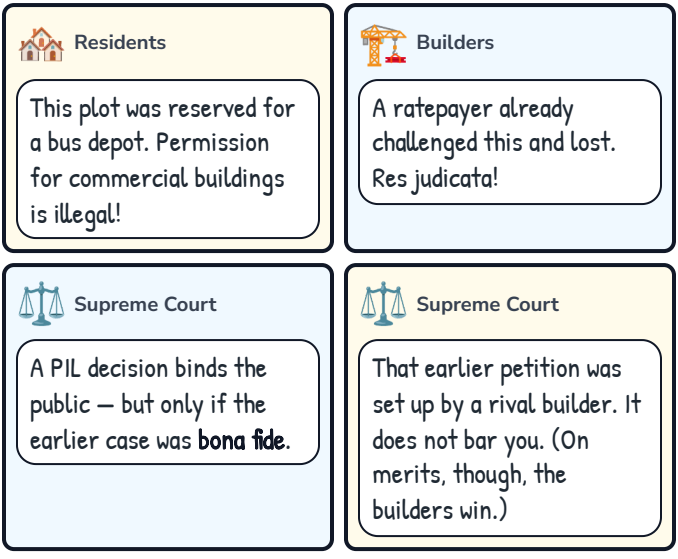
Res judicata is broader than s.11 — the **principle** reaches beyond suits.

⚖️ Case story

Forward Construction Co. v. Prabhat Mandal (Regd.), Andheri

1986 · Supreme Court of India

🏗️ Builders · 🏘️ Residents' association (Prabhat Mandal) · ⚖️ Supreme Court



Residents challenged permission for two commercial buildings on an Andheri (Bombay) plot reserved for a **BEST bus depot**. An earlier ratepayer's petition on the same subject had been dismissed.

The Court held that **Explanation VI** (representative litigation about a public right binds all interested

persons) applies to public interest litigation — **only if the earlier case was bona fide** — and **Explanation IV** bars grounds that **might and ought** to have been raised. Here the earlier petition had been **set up by a rival builder**, so it did not bar the residents. The builders nevertheless won **on the merits**.

> ***Held*** → Res judicata, including **constructive res judicata**, applies to public interest litigation — but only where the earlier litigation was **bona fide** (Expl. VI).

> 🔗 ***How it locks into the section***
> **Explanation IV + VI** in one case — and the bona fide condition for representative litigation.

Foreign judgments — when are they conclusive?

ss.13–14

A foreign judgment is **conclusive** on any matter it directly decides between the same parties **except** where:

- ✓ (a) it was not pronounced by a court of **competent jurisdiction**;
- ✓ (b) it was **not given on the merits**;
- ✓ (c) it is founded on an incorrect view of **international law** or refuses to recognise **Indian law** where applicable;
- ✓ (d) the proceedings were opposed to **natural justice**;

- ✓ (e) it was obtained by **fraud**;
- ✓ (f) it sustains a claim founded on a **breach of any law in force in India**.
- ✓ **s.14** — on production of a certified copy, the court **presumes** the foreign court was competent, unless the contrary is shown. Decrees of **reciprocating territories** can be executed directly s.44A.

⚖️ *Case story*

Y. Narasimha Rao v. Y. Venkata Lakshmi

1991 · Supreme Court of India

🤵 Husband (moved to the USA) 👰 Wife (stayed in India) 🇺🇸 Missouri court ⚖️ Supreme Court

Husband

We married in Tirupati under Hindu law. I got a divorce from a Missouri court, USA.

Wife

I never went there, never agreed to that court. And he has married again!

Missouri court

Marriage irretrievably broken. Divorce granted.

Supreme Court

Not recognised in India. Wrong court, wrong law, no submission.

The couple married at **Tirupati** under the Hindu Marriage Act. The husband went to the USA, claimed a short period of residence in **Missouri**, and obtained a divorce on the ground of **irretrievable breakdown** —

a ground not available under the Hindu Marriage Act. The wife did not submit to that court. The husband remarried, and the wife prosecuted him for **bigamy**.

The Supreme Court tested the decree under **s.13**: the Missouri court was not competent by Indian standards (residence was not genuine and the wife never submitted), the ground was not one recognised by the law under which the parties married, and the proceedings were not fair to the wife.

> ***Held*** → The foreign divorce decree was **not conclusive** under s.13 and could not be recognised. The Court laid down that a matrimonial decree should be recognised only if given on a ground available under the law under which the parties married, by a court where the respondent resided or voluntarily submitted.

> 🔗 ***How it locks into the section***
>
> Learn s.13's clauses through this story — **(a) jurisdiction, (b) merits, (c) Indian law, (d) natural justice**.

✍️ Write it in the exam like this

Q. Explain the doctrine of res judicata with its conditions and exceptions.

1. Meaning and maxims; object — finality.
2. s.11 conditions (five) with an example.
3. Explanations — especially IV (constructive), V, VI, VIII.
4. Scope — between stages (Satyadhyan Ghosal), writs (Daryao), not habeas corpus (Ghulam Sarwar), PIL (Forward Construction).
5. Exceptions — no jurisdiction, fraud, not on merits, change in law.
6. Distinguish from sub judice and estoppel; foreign judgments s.13-14 (Y. Narasimha Rao). Conclude.

Quick self-test ANSWERS BELOW EACH

Q1. What is constructive res judicata?

Explanation IV to s.11 — a matter which **might and ought** to have been raised as a ground of attack or defence in the former suit is deemed to have been directly and substantially in issue.

Q2. Does res judicata apply to writ petitions?

Yes, on general principles of public policy (Daryao, 1961) — but not to habeas corpus (Ghulam Sarwar).

Q3. Give two grounds on which a foreign judgment is not conclusive.

Any two of s.13(a)-(f): no competent jurisdiction; not on merits; against natural justice; fraud; refuses Indian law; breach of Indian law.

Asked in past papers 4 QUESTIONS · 2013–2020

2014 · Part B	Discuss the meaning, principle, policy and effect of the doctrine of res judicata u/s 11 of C.P.C.
2015 · Part B	Explain the doctrine of Res Judicata with suitable illustrations.
2017 · Part A	Foreign Judgments
2018 · Part A	Doctrine of Sub Judice and Resjudicata.

★ *Memory hook*

RJ = Same matter · Same parties · Same title · Competent court · Heard & finally decided. 'Might and ought' = **constructive** RJ. Foreign judgment — **'J-M-L-N-F-B'** exceptions.

CHAPTER 9 · 8 PARTS

Place of suing — territorial jurisdiction (ss.15–21)

Which court? · property suits · wrongs · contract suits · objections

> **Big idea**
>
> Every suit must be filed in the **lowest competent court** at the **right place** — where the **property** is, where the **wrong** was done, or where the **defendant lives or the cause of action arose**.

📖 The story of this topic

After deciding **what** to claim, the plaintiff must decide **where** to file. Think of it as three filters. First, **s.15** — file in the court of the **lowest grade** competent to try it. A small money claim goes to the lowest competent court, not the High Court.

Second, if the suit is about **immovable property** — recovery of land, partition, mortgage, any right in or compensation for wrong to it — **s.16** says file where the property is. If Anil owns a flat in **Gurgaon**, a suit about the flat goes to Gurgaon, even if both parties live in Delhi. If the land spreads across two courts' areas, either court will do (**s.17**). There is one door in the **proviso to s.16**: where the relief can be obtained entirely through the defendant's **personal obedience** (for example, where the defendant holds the property

and the plaintiff only wants an order the defendant can personally carry out, such as rendering accounts of rents he collected from it), the suit may also be filed where the defendant lives or works.

Harshad Chiman Lal Modi (2005) shows the limit. A buyer sued DLF in **Delhi** for specific performance and **possession** of a Gurgaon plot, relying on a clause choosing Delhi courts. The Supreme Court said possession of land cannot be given by personal obedience alone, so s.16 applied — and parties cannot by agreement confer jurisdiction on a court that has none.

Third, for **wrongs** to a person or movable property (**s.19**) — like an assault — the plaintiff may choose: where the wrong was done, **or** where the defendant resides. For **all other suits** (**s.20**) — contracts, money claims — sue where the **defendant resides or carries on business**, or where the **cause of action arose wholly or in part**. A **company** is deemed to carry on business at its **principal office**, or, for a cause of action arising at a place where it has a **subordinate office**, **at that place** (Explanation). In *Patel Roadways* (1991), cardamom handed to the carrier's Bodinayakanur branch was destroyed; the consignor's suit in Tamil Nadu was valid, and a clause choosing **Bombay** (the principal office) could not oust it.

Where two or more courts **already** have jurisdiction, parties may agree to choose one of them — *Swastik Gases* (2013) even read 'subject to Kolkata jurisdiction' as excluding the others. And any objection to the place of suing must be taken in the **first court at the earliest** — **s.21**; an appeal court will interfere only if there was a **failure of justice**, and **s.21A** bars a separate suit to set aside a decree on that ground alone.

Choosing the court — ask in this order FLOW

1. **Pecuniary: lowest grade competent**
   file in the court of the lowest grade that can try it
   `s.15`
2. **Immovable property suit?**
   where the property is situated
   `s.16`
   ; property in two courts' areas → either
   `s.17`
3. **Wrong to person or movables?**
   where the wrong was done **or** where the defendant resides — plaintiff's choice
   `s.19`
4. **Any other suit**
   where the defendant resides / carries on business / works for gain, **or** where the cause of action arises wholly or in part
   `s.20`

Key rules and limits

ss.16–21

- ✓ **s.16 suits**: recovery of immovable property; partition; foreclosure, sale or redemption of a mortgage; determination of any right in immovable property; compensation for wrong to it; recovery of movables under distraint or attachment.
- ✓ **Proviso to s.16**: if the relief can be obtained entirely through the defendant's **personal obedience**, the suit may also be filed where the defendant resides or works.
- ✓ **Corporations** s.20 Expl.: deemed to carry on business at the **sole or principal office**, or — for a cause of action arising where it has a **subordinate office** — at that place.
- ✓ **Objections** to place of suing must be raised in the **first court at the earliest** (before issues are settled); an appeal court will interfere only if there has been a **failure of justice** s.21. A suit to set aside a decree on that objection alone is barred s.21A.

× Exceptions / limits

- ✗ Parties **cannot confer** jurisdiction on a court that has none — consent does not cure lack of jurisdiction (Harshad Chiman Lal Modi).
- ✗ But where **two or more courts** have jurisdiction, parties may agree to sue in **one of them** (Swastik Gases; Patel Roadways).

⚖️ *Case story*

Harshad Chiman Lal Modi v. DLF Universal Ltd.

2005 · Supreme Court of India

🧑 Harshad Modi (buyer) 🏢 DLF (developer) ⚖️ Supreme Court

🧑 **Buyer**

DLF agreed to sell me a plot in Gurgaon. I sue in Delhi for specific performance — our agreement says Delhi courts.

🏢 **DLF**

The plot is in Haryana. Section 16!

⚖️ **Supreme Court**

A suit about land goes where the land is. Parties cannot give Delhi a jurisdiction it does not have.

Harshad Modi agreed to buy a plot in **Gurgaon (Haryana)** from DLF. The agreement said Delhi courts would have jurisdiction. He sued in the **Delhi High Court** for specific performance and possession.

The relief involved the **land itself**, so the case fell under **s.16**: suits for determination of rights in immovable property must be filed where the property is. The proviso did not help — possession cannot be given just by the defendant's personal obedience. A

clause cannot confer jurisdiction on a court that has none.

> ***Held*** → The Delhi court had **no jurisdiction**; the plaint had to be returned for presentation at the proper court (Gurgaon).

> 🔗 ***How it locks into the section***
> **s.16 + proviso** — and the rule that consent cannot create jurisdiction.

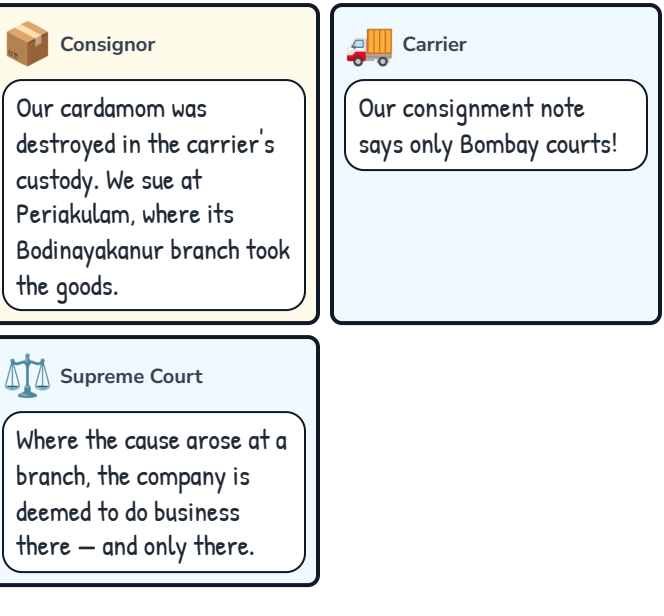
⚖️ ***Case story***

Patel Roadways Ltd. v. Prasad Trading Co.

1991 · Supreme Court of India

🚚 Patel Roadways (carrier; head office Bombay)

📦 Prasad Trading (consignor) ⚖️ Supreme Court



Prasad Trading handed cardamom to the carrier's **branch at Bodinayakanur** (Tamil Nadu) for delivery at Delhi; the goods were **destroyed by fire** in the carrier's Delhi godown. It sued at **Periakulam** (Tamil Nadu), where that branch was and where the cause of action arose in part. The carrier relied on a clause choosing Bombay courts, where its **principal office** was.

Under the **Explanation to s.20**, where the cause of action arises at a place where the corporation has a **subordinate office**, it is deemed to carry on business **at that place** — not at its principal office. So the Bombay court had no jurisdiction for this cause, and a clause cannot confer jurisdiction.

> ***Held*** → The Tamil Nadu court had jurisdiction; the clause choosing Bombay could not take it away.

> 🔗 ***How it locks into the section***
> Read the **Explanation to s.20** with this story — principal office **or** branch where the cause arose.

📌 ***Also remember***

Swastik Gases v. Indian Oil Corporation (2013): a clause saying disputes are 'subject to the jurisdiction of courts at Kolkata' shows an intention to **exclude** other competent courts, even without words like 'only' or 'exclusive'.

✍️ Write it in the exam like this

Q. Explain the rules relating to place of suing under the CPC.

1. Introduction — kinds of jurisdiction; s.15 lowest grade.
2. Immovable property — s.16 with proviso; s.17; s.18.
3. Wrongs — s.19 (choice of plaintiff).
4. Other suits — s.20 with Explanation for corporations.
5. Agreements on jurisdiction — Harshad Chiman Lal Modi; Patel Roadways; Swastik Gases.
6. Objections — s.21, s.21A. Conclude.

Quick self-test ANSWERS BELOW EACH

Q1. Where is a partition suit filed?

Where the property is situated (s.16); if in different courts' areas, in any of them (s.17).

Q2. A assaults B in Hyderabad and goes home to Pune — where can B sue for damages?

Either Hyderabad (wrong done) or Pune (defendant resides) — plaintiff's choice, s.19.

Q3. Can parties by agreement confer jurisdiction on any court?

No. They can only choose among courts which already have jurisdiction.

Asked in past papers 4 QUESTIONS · 2013–2020

2016 · Part A Territorial Jurisdiction

2017 · Part A Pecuniary Jurisdiction

2019 · Part A Pecuniary Jurisdiction

2020 · Part A Place of suing

★ *Memory hook*

Land → where the land is. Injury → where it happened or where he lives. Everything else → where he lives or where it happened. Object early (s.21).

CHAPTER 10 · 6 PARTS

Transfer of suits (ss.22–25)

Moving a case to another court — who can, and why

> **Big idea**
>
> A case can be **moved** from one court to another when the **ends of justice** require — for convenience, fairness or to avoid conflicting decisions.

📖 The story of this topic

Sometimes a case is in the **right court** on paper but the **wrong court** in practice. Imagine Neha, living with her small child in Hyderabad, whose husband files a matrimonial case against her in Delhi. Every hearing means a two-day journey and expenses she cannot bear. Or two connected suits about the same property are running in two different towns and may produce conflicting decisions. The CPC allows a case to be **moved** — transferred — when justice requires.

There are **four** sections. **s.22**: where a suit **could have been filed in two or more courts** and the plaintiff chose one, the **defendant** may ask (at the **earliest opportunity**, after notice to the other side) for transfer to another of those courts. **s.23** tells him **which court** to apply to — the common appellate court, or the High Court. **s.24** is the general power: the **High Court or District Court** may, **on application or on its own**, at

any stage, transfer or withdraw any suit, appeal or proceeding pending in a court **subordinate** to it.

But a High Court can only move cases **within its own State**. To move Neha's case from **Delhi to Hyderabad**, only the **Supreme Court** can act — under **s.25** (substituted in 1976), if it is 'expedient for the **ends of justice**'.

How does the Supreme Court decide? In *Sumita Singh v. Kumar Sanjay* (2001), it transferred a husband's matrimonial case to the wife's city, saying the **wife's convenience** must be looked at. But later, in *Anindita Das v. Srijit Das* (2006), it noticed that transfer petitions by wives had become routine; it **refused** the transfer and instead ordered the husband to pay the wife's **travel and stay expenses**. The lesson: transfer is **discretionary**. Courts weigh **convenience** of parties and witnesses, a **reasonable apprehension of bias** (real, not imaginary), and the need to try **connected cases** together — always asking what the ends of justice demand.

Four transfer sections TABLE

Section	Who transfers	When
s.22	court to which appeal lies, on the **defendant's** application	suit could be filed in more than one court; apply at earliest opportunity

Section	Who transfers	When
s.23	— (procedure)	which court hears the s.22 application: common appellate court / High Court
s.24	**High Court or District Court**, on application or **on its own**	at **any stage** — transfer or withdraw a suit, appeal or proceeding within its control
s.25	**Supreme Court**	from a court in **one State to a court in another State**, if 'expedient for the ends of justice' (substituted 1976)

Grounds courts usually accept

🚌 **Convenience**
of parties and witnesses; distance and cost

👩 **Wife's convenience**
in matrimonial cases — weighed carefully

⚖️ **Reasonable apprehension**
of bias — real, not imaginary

🔗 **Connected cases**
avoid conflicting decisions; try together

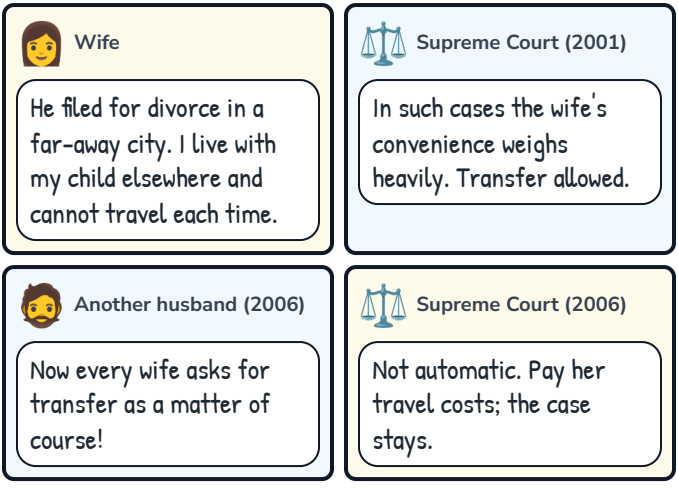
⚖️ *Case story*

Matrimonial transfer petitions — Sumita Singh v. Kumar Sanjay (2001) and Anindita Das v. Srijit Das (2006)

2001 / 2006 · Supreme Court of India

👩 Wife (respondent in husband's divorce case)

🧔 Husband (petitioner) ⚖️ Supreme Court



In **Sumita Singh**, the Supreme Court transferred the husband's matrimonial case to the place where the wife lived, observing that in such proceedings it is the **wife's convenience** that must be looked at.

Later, in **Anindita Das**, the Court noticed that transfer petitions by wives were being filed routinely. It refused transfer and instead directed the husband to pay the wife's **travel and stay expenses** for each hearing.

Held → Transfer under **s.25** is discretionary and turns on the **ends of justice** — convenience is weighed, but transfer is not automatic.

🔗 ***How it locks into the section***

s.25 is about justice between the parties — not a fixed rule in favour of either side.

✍️ Write it in the exam like this

Q. Explain the provisions of the CPC relating to transfer of suits.

1. Introduction — object: ends of justice, convenience, avoiding conflicting decisions.
2. s.22 — defendant's application; s.23 — to which court.
3. s.24 — general power of HC/District Court, suo motu, any stage.
4. s.25 — Supreme Court, inter-State transfer.
5. Grounds and cases — Sumita Singh (2001); Anindita Das (2006).
6. Conclude.

Quick self-test ANSWERS BELOW EACH

Q1. Which court can transfer a suit from Telangana to Karnataka?

Only the **Supreme Court**, under s.25.

Q2. Can a High Court transfer a case on its own motion?

Yes — s.24 allows transfer on application **or suo motu**, at any stage.

Q3. Who applies under s.22?

The **defendant**, where the suit could have been instituted in two or more courts — at the earliest opportunity.

★ *Memory hook*

22 = defendant's choice of forum · 24 = HC/District Court, any stage · 25 = Supreme Court, across States.

CHAPTER 11 · 7 PARTS

Summons and service — including foreign summons

s.27–29 · Order V · from a bailiff's visit to e-mail and WhatsApp

> **Big idea**
>
> **No one can be condemned unheard.** A summons is the court's formal call to the defendant to come and answer — proper service is the gateway to a fair trial.

📖 The story of this topic

The rule of natural justice is no one shall be condemned unheard. So when Pooja files a suit against Vikram, the court must first **tell** Vikram that a case has been filed against him and **call** him to answer. That formal call is the **summons**. **s.27** says once a suit is instituted, summons may be issued to the defendant to appear and answer — and it should be served within **30 days** of institution.

The summons (under **O.V r.1**) asks Vikram to appear and file his **written statement within 30 days**. The court can extend this for recorded reasons up to **90 days** — a limit that is **directory** in ordinary suits (*Kailash v. Nanhku*, 2005) but **strict at 120 days** in commercial suits.

How does the summons reach Vikram? Imagine a ladder. First, the court sends it through its own officer or by **registered post, speed post, approved courier, fax or e-mail** (**O.V r.9**), or lets Pooja serve it herself (**r.9A**). Wherever practicable it is served on Vikram **personally** or on his authorised agent (**r.12**). If he is away and has no agent, it may be served on an **adult member of his family** living with him — but never on a servant (**r.15**). If he **refuses** or cannot be found, the serving officer **affixes** it on the outer door of his house (**r.17**). And if the court is satisfied that Vikram is **keeping out of the way**, it orders **substituted service** — affixing in the courthouse, or a **newspaper** advertisement (**r.20**).

Some defendants need special routes: a **prisoner** through the jail officer (**r.24**); a defendant **abroad** with no agent here by post, courier, fax or e-mail (**r.25**); a **public officer** through the head of his office (**r.27**); a **soldier, sailor or airman** through his commanding officer (**r.28**). If Vikram lives in **another State**, the summons is sent to that State's court to be served (**s.28**). And a **foreign summons** from a notified foreign court can be served in India as if issued by an Indian court (**s.29**).

Technology has now joined the ladder. During the 2020 lockdown, when post offices shut, the Supreme Court allowed service of notices and summons by **e-**

mail, fax and messaging apps like WhatsApp, with the safeguard that the same document must also go by **e-mail on the same day**; the Bench remarked that two blue ticks would show the message was **seen**. This builds on the 2002 amendments to O.V, upheld in the *Salem Advocate Bar Association* cases.

The sections

ss.27–29

- ✓ **s.27** — when a suit is instituted, summons may be issued to the defendant to appear and answer the claim, served within **30 days** of institution.
- ✓ **s.28** — service where the defendant resides in **another State**: sent to that State's court to be served.
- ✓ **s.29** — **foreign summons**: summons issued by civil or revenue courts of foreign territories notified by the Central Government may be sent to Indian courts and **served as if issued by them**.
- ✓ **O.V r.1** — the summons directs the defendant to appear and file a **written statement within 30 days** (court may extend, for reasons, up to **90 days** — directory in ordinary suits, *Kailash v. Nanhku*, 2005; in commercial suits **120 days**, mandatory).

Modes of service — the ladder in Order V

FLOW

1. **By the court**
   through its officer, or by **registered post AD, speed post, approved courier, fax or e-mail**
   r.9
2. **By the plaintiff**
   court may permit the plaintiff to serve
   r.9A
3. **Personal service**
   on the defendant himself or his authorised agent, wherever practicable
   r.12
4. **Adult family member**
   if the defendant is absent and has no agent — an adult member of the family residing with him, **not a servant**
   r.15
5. **Affixing**
   if he refuses or cannot be found — on the outer door or a conspicuous part of the house
   r.17
6. **Substituted service**
   court satisfied he is keeping out of the way — affix in the courthouse and house, or **newspaper** publication
   r.20

Special defendants TABLE

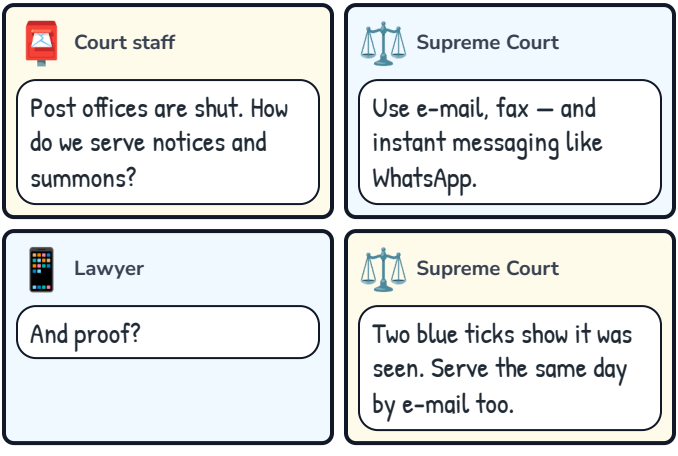
Defendant	Served through	Rule
In prison	officer in charge of the prison	O.V r.24
Residing outside India, no agent in India	post, courier, fax, e-mail	O.V r.25
Public officer	the head of his office	O.V r.27
Soldier, sailor, airman	his commanding officer	O.V r.28

Case story

Service by e-mail and WhatsApp — In re: Cognizance for Extension of Limitation

2020 · Supreme Court of India (suo motu)

COVID-19 lockdown · Post offices closed · Supreme Court



During the 2020 lockdown, physical service of notices and summons became almost impossible. In its suo

motu case on extension of limitation, the Supreme Court (10 July 2020) permitted service of notices, summons and pleadings through **e-mail, fax and instant messaging services such as WhatsApp**.

It added a safeguard: a party serving through a messaging app must also serve the same document **by e-mail on the same date**. The Bench also remarked orally that two blue ticks would show the recipient had seen it.

> ***Held*** → Electronic modes are valid ways to effect service when ordered, with safeguards for proof.

> 🔗 ***How it locks into the section***
> This is the modern face of **O.V r.9**, which since 2002 already allowed **fax and e-mail**, and of the Salem Advocate Bar Association cases (2002, 2005) which upheld those amendments and the court rules framed for them.

✍️ Write it in the exam like this

Q. What is summons? Explain the modes of service of summons.

1. Meaning and object — audi alteram partem; s.27; O.V r.1 (written statement in 30 days).
2. Modes — court (r.9), plaintiff (r.9A), personal (r.12), family member (r.15), affixing (r.17), substituted (r.20).
3. Special cases — r.24, 25, 27, 28; s.28 (other State); s.29 (foreign summons).
4. Electronic service — 2020 SC suo motu order; Salem Advocate Bar Association.
5. Conclude — proper service is the foundation of a fair trial.

Quick self-test ANSWERS BELOW EACH

Q1. Can a summons be served on the defendant's servant?

No — O.V r.15 allows service on an **adult family member** residing with him, not a servant.

Q2. When is substituted service ordered?

When the court is satisfied the defendant is keeping out of the way or cannot be served in the ordinary way — O.V r.20 (affixing, newspaper).

Q3. What is a 'foreign summons' under s.29?

A summons from a court in a foreign territory notified by the Central Government, sent to an Indian court and served as if it were its own.

Asked in past papers 3 QUESTIONS · 2013–2020

2014 · Part B Discuss about the provisions relating to summons after institution of suits.

2015 · Part C A Civil court issued summons to a party to a civil suit. The party residing in his house started evading the receipts of summons by locking his house whenever the bailiff visited the house. How can the summons be served

2020 · Part C 'X' want the presence of the president of India, as witness in a Civil Suit. Can the court issue summons to the President of India? Give reasons.

★ *Memory hook*

Court → Plaintiff → Person → Family (not servant) → Door → Newspaper. 30 days to file the written statement; up to 90 with reasons.

You have read the whole of Unit I.

Now close your eyes and tell each case story aloud once.

Guruji Sri Sri Sri Guru Viswa Spoorthi

🙏 Spoorthi Oum 🙏

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